

Prince George's County, MD
Approved by JMS 01/12/2026
Recordation Tax Paid \$0.00
Transfer Tax Paid \$0.00

BOOK: 51799 PAGE: 399
** Document being re-recorded to include signed
certificate of preparation. Previously recorded at
Book 51621, Page 398**

Prince George's Cty Cir Crt
IMP FD SURE \$40.00
RECORDING FEE \$75.00
TOTAL \$115.00
ME JD
Jan 13, 2026 08:36 am

Prince George's County, MD
Approved by CJF 03/05/2026
Recordation Tax Paid \$0.00
Transfer Tax Paid \$0.00

Recordation and Transfer Tax Exemptions for re-recording:
Md. Tax-Prop. Code Ann. §12-108(f)
Md. Tax-Prop. Code Ann. §13-207(a)(5)

RECORD AND RETURN TO:
Aaron D. Neal, Esq.
McNamee Hosea
6404 Ivy Lane, Suite 820
Greenbelt, Maryland 20770

Prince George's Cty Cir Crt
IMP FD SURE \$40.00
RECORDING FEE \$75.00
TOTAL \$115.00
ME JD
Mar 13, 2026 10:56 am

UTILITY EASEMENT AND RIGHT OF WAY AGREEMENT

THIS UTILITY EASEMENT AND RIGHT OF WAY AGREEMENT (the "Agreement") is made and entered into this 30 day of October, 2025, by and between **Michael Doyal and Kathleen Doyal** (collectively "Grantor") and **Gerald Waldman, Trustee of the Gerald Waldman Revocable Trust** ("Grantee"). Grantor and Grantee may individually be referred to as a "Party" and collectively as the "Parties".

WITNESSETH:

WHEREAS, the Grantor is the owner of (1) Outlot A, as shown on the plat of subdivision entitled "Lots 1 – 6 and Outlot A Estates at Indian Head", recorded among the Land Records of Prince George's County, Maryland in Plat Book PM 28, Page 83, by virtue of the deed being executed and record immediately prior hereto, and (2) Lot numbered twenty (20) in block lettered "A" in the subdivision known as "Treeview Estates as per plat thereof in Plat Book VI 164 at 92, among the Land Records of Prince George's County, Maryland being in the 5th election district of said county (collectively, the "Grantor Property"), Outlot A and Lot 20 being depicted on Exhibit A attached hereto.

WHEREAS, the Grantee is the owner of Lots Numbered 1 through 6, as shown on the plat of subdivision entitled "Lots 1 – 6 and Outlot A Estates at Indian Head", recorded among the Land Records of Prince George's County, Maryland in Plat Book PM 228, Page 83 (the "Grantee Property"), Lot 4 of the Grantee Property being depicted on Exhibit A attached hereto.

WHEREAS, the Grantee Property is intended to be developed with a comprehensively planned residential community;

WHEREAS, Grantee has requested that Grantor grant to Grantee an easement and right-of-way on a portion of Grantor's Property for the purpose of constructing, installing, maintaining, repairing, operating, removing and inspecting utilities, including but not limited to water and sewer mains and appurtenances thereto, including service connections within said easement and right-of-way, together with the right of ingress and egress along and over said right-of-way, for any and all such purposes associated therewith; the said right-of-way and easement being fully described and depicted as follows:

SEE ATTACHED EXHIBIT "A"

RECORD AND RETURN TO:
Aaron D. Neal, Esq.
McNamee Hosea
6404 Ivy Lane, Suite 820
Greenbelt, Maryland 20770

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SEE ATTACHED EXHIBIT "A"

WHEREAS, the Parties acknowledge that the water and sewer portion of this easement and right-of-way will become a public easement to the benefit of the Washington Suburban Sanitary Commission ("WSSC"), a public corporation of the State of Maryland, organized and existing under the laws of the said State. To facilitate the same, the Parties hereto further acknowledge and agree that the water and sewer portion of this easement and right-of-way will be assigned to WSSC, or a separate easement and right-of-way agreement will be executed replace the water and sewer portion of this Agreement and grant the same (or substantially similar, as WSSC may require) easement and right of way to WSSC.

NOW, THEREFORE, in consideration of the transfer of Outlot A from Grantee to Grantor, said transfer being accomplished via deed being executed and recorded immediately prior hereto, the mutual promises herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Grantor does hereby grant and convey unto Grantee a non-exclusive, perpetual easement for utility access, including, but not limited to, water and sewer mains and appurtenances thereto, including service connections above described or mentioned and hereby intended to be granted and conveyed, together with the rights, privileges, appurtenances, and advantages thereto belonging or appertaining, unto and to the only proper use, benefit and behoof (until such time as the same is granted to WSSC) to the Grantee, is successors, assigns and beneficiary;

AND the Parties hereto, for its successors and assigns, covenant and agree as follows:

FIRST: The recitals to this Agreement are hereby incorporated into, and shall constitute a substantive part of this Agreement.

SECOND: Grantor hereby grants, conveys and assigns to Grantee and Grantee's heirs, successors and assigns, a nonexclusive, irrevocable and perpetual easement over, across, under and on that portion of Grantor's Property described and depicted in Exhibit "A" ("Easement Area") for the purposes of laying, constructing, installing, realigning, modifying, replacing, improving, operating, maintaining, upgrading, inspecting, protecting, repairing, changing the size of, relocating and removing at will, in whole or in part, utilities, including but not limited to, water and sewer mains and appurtenances thereto belonging (collectively, the "Facilities") over, across, under and upon the Easement Area to serve the future development of the Grantee Property (collectively, the "Easement"), to have and to hold said Easement together with the rights, privileges, appurtenances, and advantages thereto belonging or appertaining, unto and to the only proper use and benefit (until such time as the same is granted or assigned to WSSC) to the Grantee, its successors, assigns and beneficiary. Until and unless such time as the easement and the Facilities are granted or assigned to WSSC, Grantee shall (a) perform any work, maintenance, repair and replacements within the Easement Area in a good and workmanlike manner; (b) comply with all laws, rules, orders, ordinances, regulations and requirements now or hereafter enacted or promulgated by any federal, state, or local or other governmental body or agency having jurisdiction over the Easement Area; (c) proceed diligently and promptly with any

required maintenance, repair or replacement activity; (d) promptly pay each contractor, materialman and other persons performing services or providing goods to the Easement Area; and (e) employ every reasonable effort to avoid damage to or interference with other portions of the Grantor's Property.

THIRD: The Parties acknowledge and agree that the water and sewer portion of this Easement will be assigned to, or will execute a future separate easement and right-of-way agreement, in similar form, to WSSC to ensure that this water and sewer easement and right-of-way will become a public water and sewer easement to the benefit of WSSC. The Parties acknowledge and agree to execute any assignment agreement or future separate easement and right-of-way agreement, in similar form, to accommodate the same.

FOURTH: Grantee, and Grantee's successors and assigns, shall at all times have the right of ingress and egress over the Grantor's Property for the purpose of installing, constructing, reconstructing, maintaining, repairing, operating, removing and inspecting the Facilities (including service connections) within the Easement, with said ingress and egress being along the line designated in Exhibit "A".

FIFTH: Grantor, its successors or assigns, will not erect nor permit to be erected any building or structure of any nature whatsoever within the Easement, nor fill or excavate within the said right-of-way without the written consent of Grantee. Further, Grantor shall not use any part of the Easement if such use that may damage, destroy, injure and/or substantially interfere with Grantee's use of the Easement.

SIXTH: Grantor will warrant specifically the Easement and will execute such further assurances thereof as may be requisite.

SEVENTH: Improvement and maintenance of the Facilities will be completed at the sole expense of Grantee until such time that the water and sewer portion of the Easement is made public and granted or assigned to WSSC. Grantee has the right to eliminate any encroachments into the Easement. Grantee further has the right to relocate any fences with the Easement or along its boundary lines if reasonably necessary to construct, install, maintain, replace or remove the Facilities, subject to replacement of the fences to their original condition upon completion of the work.

EIGHTH: This Agreement shall be construed under the laws of the State of Maryland, without regard to choice-of-law rules of any jurisdiction. Venue shall be in the county in which the Easement is located. If either party retains an attorney to enforce this Agreement, the prevailing party shall be entitled to recover reasonable attorneys' fees and associated costs. This Agreement may not be amended or modified except by an instrument in writing executed by the Grantor and Grantee recorded among the Land Records of Prince George's County, Maryland.

NINTH: Grantee shall be liable for any loss, cost or damage to the Grantor's Property caused by Grantee in the exercise of its rights under this Agreement and shall indemnify the Grantor in the event of the same. The Grantor shall not be liable for any losses, damages, costs, expenses, claims, demands, suits, recoveries, judgments, executions or penalties by reason of any injury to, or death of, any person or any damage to, or destruction of any property, including, without limitation, loss of use thereof, arising out of, or in any way connected with this Agreement, except where such injury, death, damage or destruction is due to the negligence or willful misconduct of the Grantor or its assigns, agents or employees.

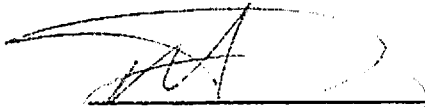
TENTH: To the extent that the improvement labelled "SHED" on Exhibit "A" needs to be relocated for Grantee to make full and necessary use of the Easement Area or the subsequently described Temporary Construction Easement, Grantee will have the right to and shall move the SHED at Grantee's expense to a location on the Grantor Property chosen by Grantor.

AND FURTHER, Grantor grants a Temporary Construction Easement to Grantee, its agents and/or employees, to enter upon, with necessary equipment, and have access to an additional area of land during the period of construction only, if needed or required by the WSSC. This additional area for a Temporary Construction Easement shall consist of five (5) foot strips of land running parallel to the northern and southern boundaries of the Easement.

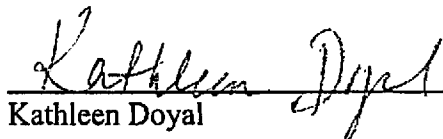
IN WITNESS WHEREOF, the Parties have hereunto affixed their hands and seals on the day and year first herein above written.

Signature Pages to Follow

IN WITNESS WHEREOF, the undersigned has executed this instrument this
7 day of November, 2025.



Michael Doyal (SEAL)



Kathleen Doyal (SEAL)

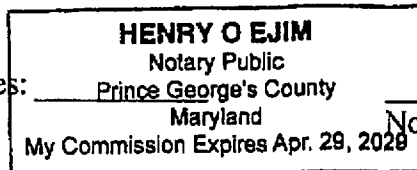
Acknowledgement

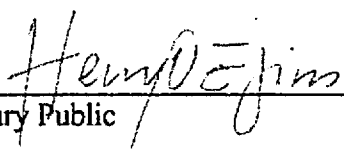
STATE OF Maryland
CITY/COUNTY OF Prince George's, TO WIT:

I HEREBY CERTIFY, that on this 7 day of November, 2025, before me, the subscriber, a Notary Public of the jurisdiction aforesaid, personally appeared **Michael Doyal** and **Kathleen Doyal**, who executed the forgoing instrument for the purpose therein contained.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

My Commission expires: _____





Notary Public

[Additional signatures contained on following page]

Gerald Waldman, Trustee of the Gerald Waldman
Revocable Trust

By: [Signature] (SEAL)
Name:
Title:

Acknowledgement

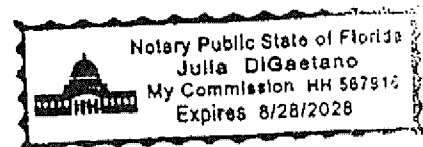
STATE OF Florida, CITY/COUNTY OF Palm Beach TO WIT:

I HEREBY CERTIFY, that on this 30 day of October, 2025, before me, the subscriber, a Notary Public of the jurisdiction aforesaid, personally appeared **Gerald Waldman**, who acknowledged himself to be Trustee of the Gerald Waldman Revocable Trust and who further acknowledged that he, in such capacity and being authorized so to do, executed the forgoing instrument for the purpose therein contained.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

My Commission expires: 8/28/28

[Signature]
Notary Public



Preparer's Certificate

The undersigned hereby certifies that he/she is an attorney admitted to the Bar of the State of Maryland and that this instrument was prepared by or under his/her supervision.

[Signature]
Aaron D. Neal, Esq.

16/58 QVN

106.09' (PLAT)

360' WIDE PROP WSSC EASEMENT
906 Sq. Feet
0.0208 Acres

EASEMENT LINE TABLE OUTLOT A		
LINE	BEARING	DISTANCE
L1	S 85°10'40" W	30.25'
L2	N 03°27'26" W	30.00'
L3	N 85°10'40" E	30.21'
L4	S 03°27'26" E	30.00'

GRAPHIC SCALE
(in feet)
1 inch = 20 ft.

N 03°27'26" W 90.53' (PLAT)

OUTLOT "A"

S 03°27'26" E 209

31.57 (PLP)

LOT21
N/F

N 0327'26" W

S 85°10'40" W 108.67' (PLAT)

②

LOT20
N/F
DOYAL, MICHAEL & KATHLEEN
LIBER 18851 FOLIO 46;

EASEMENT LINE TABLE Lot 20		
LINE	BEARING	DISTANCE
L1	S 03°27'26" E	30.00'
L2	N 85°10'40" E	103.23'
L3	S 85°10'40" W	106.67'

EASEMENT CURVE TABLE Lot 20				
NO. RADIUS	ABC	DELT A	TANGENT	CHORD BEING / LENOIN
C1	176.00'	59.12'	67.20'	26.42'
				N 43°07'06" W 30.12'

30' WIDE PROP WSSC EASEMENT

0154 Sq. Feet
0.0724 Acres

LOT	LOT 30 / COUNTRY A BASIN	NET SURFACE SQ	SEC 17 - 34
ACRES	1.000000	DEED IN IS	SPR 16 IS
SECTION	17	DEED IN IS	SPR 16 IS
TOWNSHIP	17 N	DEED IN IS	SPR 16 IS
RANGE	17 E	DEED IN IS	SPR 16 IS
COUNTY	Y	DEED IN IS	SPR 16 IS
STATE	TX	DEED IN IS	SPR 16 IS
FILE NO	00-019	DEED IN IS	SPR 16 IS
FILE NO	00-019	DEED IN IS	SPR 16 IS

SCHEDULE 'A'

DESCRIPTION OF A WSSC EASEMENT

MICHAEL & KATHLEEN DOYAL

**15603 Henrietta Drive
Accokeek, Maryland 20607**

TO

WASHINGTON SUBURBAN SANITARY COMMISSION

**14501 Sweitzer lane
Laurel, Maryland 20707**

BEING a strip or parcel of land, herein after described across the property conveyed from Michael C. Doyal and Kathleen E. Doyal by deed dated 06, 19 2024 and recorded on 12-15-2003 among the Land Records of Prince George's County, Maryland in Liber 18851 at Folio 461; also being part of the property (Proposed Lot 20, Block A) acquired by Michael C. Doyal and Kathleen E. Doyal; all as originally shown on Plat entitled "Treeview Estates" date 02-01-1993 and recorded among the aforesaid land Records in plat Book V.J. 164, Plat No. 92 and being more particularly described in the NAD 83/91 datum as now surveyed.

BEGINNING for the same at a point on the South West Corner or S 03°27'26" E 209.86' line OUTLOT "A" also known as North interior Corner on the S 68°24'27" W 31.57' on Lot 21, said point of beginning being thus located by proceeding N 03°24'09" W 31.62' to a point five feet beyond the South West corner of LOT, as shown on said Plat Book V.J. 164, Plat No. 92; thence

1. N 03°24'09" W 30.00' to a point; thence,
2. S 85°10'40" W 103.23' to a point; thence,
3. Curve Bearing N 043°07'06" W 30.12 to the point of beginning. Containing 3,154 square feet or 0.0724 acres of land more or less as shown on Schedule B, WSSC Sketch #A-XXXXX.

Surveyor's Certificate

The licensee below was in responsible charge over the preparation of this metes and bounds description and the surveying work reflected in it, all in compliance with the requirements set for on COMAR Title 9, subtitle 13, Chapter 6, Regulation .12 of the minimum standards and practice for Land Surveyors.

William R. Anderson

June 19, 2024

Date

William R. Anderson,
Professional Land Surveyor
Maryland License No. 21101
License Expiration Date: 08-30-2025



City: Baltimore City **County:** Prince George's **BOOK:** 51799 **PAGE:** 40

Information provided is for the use of the Clerk's Office, State Department of Assessments and Taxation, and County Finance Office Only.

(Type or Print in Black Ink Only—All Copies Must Be Legible)

(Type or Print in Black Ink Only—All Copies Must Be Legible)

Space Reserved for Circuit Court Clerk Recording Validation

Consideration and Tax Calculations

Fees

Description of Property

**Transferred
From**

**Transferred
To**

Other Names to Be Indexed

Contact/Mail Information

Space Reserved for County Validation